

REVOCATION OF POWER OF ATTORNEY

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This Revocation of Power of Attorney (this "**Revocation**") is made as of [EFFECTIVE DATE] by:

[PRINCIPAL FULL LEGAL NAME], residing at [PRINCIPAL ADDRESS] (the "**Principal**"), who previously granted a power of attorney and now revokes it.

The power of attorney being revoked (the "**Prior Power of Attorney**") is the document titled [TITLE OF PRIOR POA, e.g. "Durable Power of Attorney"], dated [DATE OF PRIOR POA], under which the Principal appointed [AGENT NAME] of [AGENT ADDRESS] as the Principal's attorney-in-fact (the "**Former Agent**"). [IF RECORDED: The Prior Power of Attorney was recorded on [DATE] in the records of [COUNTY, STATE] as instrument/document number [NUMBER].]

Recitals. The Principal is of sound mind and signs this Revocation voluntarily, free from duress or undue influence. The Principal granted the Prior Power of Attorney to the Former Agent and now wishes to revoke and terminate all authority granted under it. This Revocation is intended to take effect under the laws of [STATE] governing powers of attorney. The Principal therefore declares as follows.

1. Revocation of Authority

1.1 Revocation. The Principal hereby revokes, cancels, and terminates the Prior Power of Attorney in full, together with all authority, powers, and rights granted to the Former Agent and to any successor or alternate agent named in the Prior Power of Attorney.

1.2 Effective immediately. This Revocation is effective immediately upon signing, and the Former Agent's authority ends as of that time, subject to the notice provisions in Section 3.

1.3 Scope. This Revocation applies to the entire Prior Power of Attorney and to any and all acts the Former Agent would otherwise be authorized to take, unless Section 1.4 limits it.

1.4 Partial revocation (optional). [OPTIONAL: If the Principal intends to revoke only part of the Prior Power of Attorney, describe precisely what is revoked and what remains in effect. Otherwise delete this section, and the revocation is complete.]

2. No Further Authority of the Former Agent

2.1 Cessation of authority. From the effective date, the Former Agent has no authority to act for the Principal and may not represent to any person that the Former Agent holds a valid power of attorney from the Principal.

2.2 Return of property and records. The Former Agent will promptly return to the Principal any original power-of-attorney documents, property, funds, records, and other materials of the Principal in the Former Agent's possession or control.

2.3 Final accounting. The Principal **[requests / does not request]** a final accounting from the Former Agent of all actions taken and money received or paid on the Principal's behalf under the Prior Power of Attorney. If requested, the Former Agent will provide it within **[NUMBER, e.g. 30]** days.

2.4 No release of liability. This Revocation does not release the Former Agent from responsibility for any act or omission occurring while the Prior Power of Attorney was in effect, and the Principal reserves all rights and remedies.

3. Notice to Third Parties

3.1 Notice. The Principal will deliver a copy of this Revocation to the Former Agent and to any institution or person known to have relied on or to be likely to rely on the Prior Power of Attorney, including the following: **[LIST BANKS, TITLE COMPANIES, BROKERAGES, HEALTH-CARE PROVIDERS, OR OTHERS, OR WRITE "as applicable"]**.

3.2 Reliance until notice. A third party that, without actual knowledge of this Revocation, acts in good faith in reliance on the Prior Power of Attorney may be protected to the extent provided by the law of **[STATE]**. Prompt notice to all relying parties is therefore important to make this Revocation effective as to them.

3.3 Recording. If the Prior Power of Attorney was recorded in any public office, the Principal will record this Revocation in the same office(s) so that the public record reflects the revocation. **[IDENTIFY RECORDING OFFICE, e.g. the [COUNTY, STATE] recorder of deeds.]**

4. New or Replacement Power of Attorney

4.1 Replacement (optional). **[OPTIONAL: If the Principal has signed or intends to sign a new power of attorney, identify it here, e.g. "The Principal has executed a new Durable Power of Attorney dated [DATE] appointing [NEW AGENT NAME]." Otherwise state "The Principal does not, by this Revocation, appoint any new agent."]**

4.2 No implied appointment. Nothing in this Revocation appoints any agent or grants any authority to any person. Any new authority must be granted by a separate, properly executed power of attorney.

5. Representations of the Principal

5.1 Capacity. The Principal represents that the Principal has the legal capacity to revoke the Prior Power of Attorney and is acting of the Principal's own free will.

5.2 Authority to revoke. The Principal represents that the Principal is the person who granted the Prior Power of Attorney and is entitled to revoke it.

6. Effect on Pending Matters and Indemnity

6.1 Pending transactions. If the Former Agent has begun, but not completed, a transaction on the Principal's behalf, the Principal will determine whether to complete that transaction directly, through a new agent, or not at all. The Former Agent has no authority to complete any pending transaction after the effective date of this Revocation.

6.2 Obligations already incurred. This Revocation does not cancel any valid obligation the Former Agent properly created on the Principal's behalf before the effective date while acting within the scope of the Prior Power of Attorney, and the Principal remains responsible for those obligations to the extent required by law.

6.3 Indemnity for unauthorized acts. The Former Agent will indemnify the Principal against any loss, liability, or expense arising from any act the Former Agent takes after the Former Agent has actual knowledge of this Revocation, or from any act outside the scope of the Prior Power of Attorney, to the extent permitted by the law of [STATE].

7. General Provisions

6.1 Governing law. This Revocation is governed by the laws of the State of [STATE] and is intended to be valid in any jurisdiction in which the Prior Power of Attorney was or could be used, to the extent that jurisdiction's law permits.

6.2 Severability. If any provision of this Revocation is held invalid, the remaining provisions remain in effect, and the core revocation in Section 1 remains fully effective.

6.3 Copies. A photocopy or electronically transmitted copy of this signed Revocation has the same effect as the original, to the extent permitted by applicable law.

6.4 Execution formalities. The Principal will sign this Revocation with the same witness and notary formalities used for, or required by the law of [STATE] for, the Prior Power of Attorney, so that it is given equal effect by third parties.

Principal. I sign this Revocation of Power of Attorney knowingly and voluntarily, intending to revoke the Prior Power of Attorney described above.

PRINCIPAL

Signature: _____

Printed name: [PRINCIPAL NAME]

Date: _____

Witnesses (if required by [STATE]).

WITNESS 1

Signature: _____

Printed name: [NAME]

Address: [ADDRESS]

Date: _____

WITNESS 2

Signature: _____

Printed name: [NAME]

Address: [ADDRESS]

Date: _____

Notary acknowledgment.

State of [STATE], County of [COUNTY]. This Revocation was acknowledged before me on [DATE] by [PRINCIPAL NAME], who is personally known to me or proved identity to me, and who signed it freely for the

purposes stated.

NOTARY PUBLIC

Signature: _____

Printed name: **[NOTARY NAME]**

My commission expires: **[DATE]**

(Seal)

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